

Section 2.01 - Use:

The Premises shall be used by Lessee during the term hereof for the operation of a Great American Cookie Franchise and a Hershey's Ice Cream Franchise including, but not limited to the retail sale of deserts, ice cream and cookie cakes and related items and general office and general office space and Lessee agrees that any change in the use of the Premises shall require the prior written consent of the Lessor which shall not be unreasonably withheld; provided, however, Lessee shall be entitled without Lessor's consent to change the usage of the Premises from the operation of a Hershey's Ice Cream franchise to the operation of a Marble Slab Creamery franchise. Lessee acknowledges and agrees that:

- (i) The Premises shall not be used during the Initial Term or any Renewal Term hereof as a delicatessen or other restaurant whose operations are the same or similar to a Jason's Deli or whose primary menu items are salads, soups, sandwiches, and baked potatoes or any one or more of said items; and
- (ii) The Premises shall not be used during the Initial Term or any Renewal Term hereof as a veterinary clinic engaged primarily in the care and treatment of cats.

Provided Lessee is open and operating in the Premises, Lessor shall not lease or permit the leasing or subleasing of or sell any space in the Boulevard Shopping Center Property during the term of this Lease and any extensions hereof to any person or entity which will utilize the space, or any part thereof, for a Nothing Bundt Cakes store or whose primary business is selling cookies, cookie cakes, ice cream or other frozen desserts. Lessee acknowledges that this provision shall not apply to any of Lessor's existing tenants that currently have the right to use their premises in such a manner, except that Lessor agrees not to modify any of the existing leases to permit such conflicting use. As used herein, the term "primary business" shall mean a business in which the sales of cookies, cookie cakes, ice cream or other frozen desserts constitute more than 25% of such business's total sales.

The prohibition shall not apply to: (a) any Lessee or successor to Lessee whose lease, including any renewal or extension, is in effect prior to the Effective Date.

Should any other Lessee or occupant at the Shopping Center violate the exclusive use rights granted to Lessee by this Section, Lessor shall take all reasonable and prudent actions necessary or desirable to be taken to cause the offending Lessee or occupant to cease its violation. Should, within a reasonable time after Lessee has given Lessor notice of an alleged breach thereof by such other Lessee or occupant, Lessor fail to proceed as provided in the previous sentence, Lessee, as its sole remedy, may proceed against that Lessee or occupant, in its own name, and at its own expense, to obtain injunctive relief against the offending Lessee and/or to obtain monetary damages from the offending Lessee or occupant, unless Lessor has failed to include Lessee's exclusive in the offending Lessee's lease, in which case Lessee may proceed against Lessor. Lessor agrees to cooperate with Lessee in any such action, but Lessee shall reimburse Lessor for any out-of-pocket expense incurred by Lessor in so doing.